

prejudice is GRANTED pursuant to Code of Civil Procedure section 473 and in the interests of justice. Defendant claims fraud on the underlying account.

The Court will sign the proposed order submitted with the moving papers.

25CV-05183 TD Bank USA, N.A. vs. Victor Montero

Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff TD Bank USA, N.A. for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Victor Montero is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to Plaintiff's requests for admission prior to the hearing. In accordance with Code of Civil Procedure sections 2023.030(a) and 2033.280(c), the Court imposes a mandatory monetary sanction against Defendant in the amount of \$310.00 due and payable to Plaintiff thirty days from notice of entry of order.

The Court will sign the proposed order submitted with the moving papers (amended in accordance with the Court's ruling). Plaintiff is directed to provide notice of the order to Defendant.

26CV-04089 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04376 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.
